

Shiv Prasad v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · Writ-C No. 14574 of 2022 · WRIT - C No. 14574 of 2022 ·
Writ disposed; petitioner relegated to clause 6.8 objection with stay of coercive action.

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ challenging a provisional assessment notice under sections 135/126 of the Electricity Act, 2003 by granting liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing time-bound disposal after hearing, and staying coercive action for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Shiv Prasad challenged a provisional assessment notice dated 19 July 2021 issued under sections 135/126 of the Electricity Act, 2003 by the distribution licensee, and sought a direction to decide his pending objection/reply dated 20 April 2022. Counsel for the power distribution corporation stated on instructions that the petitioner may file an objection against the demand, which would be decided in accordance with law within a time-bound period. The Division Bench disposed of the writ without examining merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

provisional assessment objection

HOLDING

Without examining merits, a writ challenging a provisional assessment notice issued under sections 135/126 of the Electricity Act, 2003 is disposed by liberty to submit an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the assessing officer shall decide it in accordance with law, expeditiously and preferably within four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined merits review of the s.135/126 provisional assessment notice and relegated the petitioner to a clause 6.8 objection before the assessing officer. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Though a reply dated 20.04.2022 was said to be pending, the Court directed a fresh clause 6.8 objection to be decided after hearing, and stayed coercive action for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 19.07.2021 UNDER SECTIONS 135/126

The Court expressly declined to express any opinion on merits and relegated the petitioner to a clause 6.8 objection. ¶ 1